

**U.O.Note No.302/Spl.B/2000-1, Genl.Admn. (Spl.B) Dept., dt.13.03.2000:
Correspondence with Vigilance Commission not to be quoted.**

Subject Heading : Vigilance Commission - not to mention in references

Ref : 1.U.O.Note No.962/SC.E/97-1, GAD dt.04.08.97.

2. U.O.Note No.2985/SC.E/98-1, GAD dt.04.01.99.

3. From the Vigilance Commissioner, A.P., Lr.No.34/VC.A2/20001, dt.02.02.2000.

The attention of all the Departments of Secretariat is invited to the instructions issued in the U.O.Note first cited, wherein they were requested not to mention the correspondence made with the A.P. Vigilance Commission in their orders appointing the Inquiry Officer. These instructions were reiterated in the U.O.Note second cited.

2. In the letter third cited, the Vigilance Commissioner has brought it to the notice of the Government, that inspite of the above specific instructions, the Departments of Secretariat / disciplinary authorities are violating these instructions frequently and quoting the references received from the Vigilance Commission in their correspondence in disciplinary cases by which the accused officers are able to quote the references of the Vigilance Commission before the APAT / Courts etc., and are impleading the Vigilance Commission as one of the respondents.

3. The Departments of Secretariat are informed that the instructions issued in the U.O.Note first and second cited have to be implicitly followed and that they should avoid making mention of Vigilance Commission's letter or references thereto in their correspondence and avoid exposing the advice of the Commission. The departments are required to utilise the material supplied by the A.C.B. or the advice tendered by the Vigilance Commission to take considered decision in disciplinary matter. There should be nothing mentioned in the proceedings to issue in disciplinary matters either about the advice of the Vigilance Commission / Anti-Corruption Bureau or to any references received therefrom.

4. In the circumstances, while reiterating the instructions issued in the U.O.Note first and second cited, the Departments of Secretariat are once again requested to follow the instructions issued in the U.O.Note first and second cited, scrupulously.